

THE PESHAWAR HIGH COURT, PESHAWAR

(Judicial Department)

W.P No.401-P/2026 with C.M No.14-P/2026.

*Muhammad Umair s/o Fazal Muhammad r/o House No.15,
Mohallah Qazi Abad, Dalazak road, Peshawar.*

Versus

*Inspector General of Police, Khyber Pakhtunkhwa at Central
Police Office (CPO), Peshawar & another.*

For petitioner(s): *Mr. Tanveer Alam, Advocate.*

For respondent(s): *Mr. Riaz Khan, AAG.*

*Mr. Mansoor Niaz Khankori,
Advocate/Legal Advisor, CPO & Mr.
Aftab Jahan, Inspector Legal, CPO.*

Research by: *Mr. Mazhar Ali Khan, Research &
Reference Officer.*

Date of hearing: **04.06.2026.**

J U D G M E N T

INAM ULLAH KHAN, J.- Through this Judgment, we propose to dispose of the instant Constitutional Petition, filed by the petitioner, Muhammad Umair, under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (“**Constitution**”), challenging the refusal of the respondents to issue an appointment order for the post of Assistant (BPS-16) on the ground of overage, despite his successful qualification through the entire recruitment process and recommendation for appointment.

2. The pivotal question requiring determination in this petition is whether the respondents, after permitting the petitioner to participate in the entire recruitment process,

selecting him on merit, and issuing a provisional offer of appointment, could lawfully refuse the issuance of his formal appointment order through the impugned order dated 23.04.2026 on the sole ground of overage, especially when the initial advertisement allowed for age relaxation under prevailing Government policy and rules, and considering the non-retrospective applicability of a subsequent Provincial Cabinet Decision.

3. Briefly stated, the facts necessary for the disposal of the instant petition are that the respondents advertised various vacant posts, including the post of Assistant (BPS-16), through a public advertisement, inviting applications from eligible candidates. The advertisement specifically provided that age relaxation would be admissible in accordance with the prevailing Government rules and policy. The petitioner, claiming himself fully eligible, submitted his online application within the prescribed time. Significantly, it is an admitted position on the record that while submitting the online application, the petitioner not only applied for the post in question but also expressly sought age relaxation in accordance with the terms of the advertisement and the applicable Government policy. Thereafter, the petitioner was issued Roll No. 027185 by the Educational Testing and Evaluation Agency (“**ETEA**”), appeared in the screening test, secured 298 marks out of 400, and successfully qualified the same on merit. Subsequently, he was called for interview by the respondents, appeared before the competent authority, qualified the interview, and was recommended by the Departmental Selection Committee for appointment against the post of Assistant (BPS-16). Thereafter, a provisional offer

of appointment was extended to him, which he accepted and completed all requisite formalities. However, at the final stage, the respondents declined to issue the formal appointment order on the ground that the petitioner was overage by approximately one year and four months as on the closing date of applications. Feeling aggrieved, the petitioner submitted various representations seeking the grant of age relaxation in accordance with the advertised terms and applicable rules, but to no avail.

4. The respondents, through their comments, have not disputed the petitioner's participation in the entire recruitment process, his qualification in the ETEA test, his appearance in the interview, his recommendation by the Selection Committee, or the issuance of a provisional offer of appointment. Their sole contention is that the petitioner was aged 31 years, 3 months, and 24 days on the closing date of applications, whereas the prescribed age limit was 18 to 30 years. According to the respondents, mere participation in the recruitment process or even provisional recommendation did not confer any vested right of appointment upon the petitioner, and upon verification of his documents, he was found overage; therefore, the formal appointment order could not be issued.

5. During the pendency of the instant petition, the respondents formally rejected the petitioner's request for age relaxation through order/letter dated 23.04.2026. Consequently, the petitioner also moved a C.M No. 14-P/2026, seeking incorporation of an additional prayer for declaring the said rejection order dated 23.04.2026 as illegal, unlawful, without lawful authority, contrary to the

applicable rules, and ineffective upon his rights. The record reflects that the present constitutional petition had already been instituted in January 2026, wherein the petitioner had challenged the respondents' refusal to appoint him and had raised all material grounds relating to the denial of age relaxation. However, at the time of filing of the petition, no formal order embodying such refusal had been passed. The impugned rejection order came into existence subsequently during the pendency of the proceedings and merely gave formal shape to the controversy already agitated before this Court. Since the proposed addition of prayer neither alters the nature of the *lis* nor introduces a new cause of action but is intended only to bring on record a subsequent development directly connected with the subject matter of the petition, the same was allowed. Accordingly, the additional prayer shall be treated as part of the writ petition, and the office is directed to make the necessary entries and corrections in the relevant record.

6. The learned counsel for the petitioner contended that the advertisement explicitly allowed for age relaxation as per prevailing Government rules. The petitioner not only applied for the post but also specifically sought age relaxation in his application. His participation in the entire recruitment process, including the ETEA test, interview, subsequent recommendation by the Departmental Selection Committee, and the issuance of a provisional offer of appointment, created a legitimate expectation and a vested right to be considered for appointment with the granted age relaxation. It was vehemently argued that the respondents, having permitted the petitioner to go through the elaborate recruitment process without raising any objection regarding

age at the initial or intermediate stages, are now estopped from denying him the appointment on the very ground of overage, which was a known factor from the outset and for which relaxation was sought as per the advertisement.

Furthermore, the learned counsel highlighted that the rejection was based on a Provincial Cabinet Decision dated 15.01.2025 (20th meeting), communicated vide No. SO (Police-I)/HD/7-17/Pol:Act/2024 dated 20.01.2025, which purportedly banned age relaxation. It was submitted that this decision, being prospective in nature, could not be applied retrospectively to the petitioner's application, which was submitted in 2022, well before the Cabinet Decision came into force. To apply a new policy adversely affecting a right that had already accrued or was in the process of accrual would be against the established principles of law and natural justice. The learned counsel invoked The Khyber Pakhtunkhwa Initial Appointment to Civil Posts (Relaxation of Upper Age Limit) Rules, 2008 (**Age Relaxation Rules**), particularly Rules 3, 6, and 7, to assert the petitioner's entitlement to age relaxation, which was available at the time of his application and qualification.

7. Conversely, the learned Assistant Advocate General (AGG) and the Legal Advisor for CPO for the respondents reiterated the stance taken in their comments, emphasizing that the petitioner was indeed overage by approximately one year and four months on the closing date of applications. It was argued that mere participation in the recruitment process, even if successful, or the issuance of a provisional offer, does not confer a vested right of appointment. The process of verification of documents is the

final stage, and if a candidate is found ineligible, even at that stage, the appointment can be withheld. The learned AGG placed reliance on the Provincial Cabinet Decision dated 15.01.2025, communicated on 20.01.2025, which, according to the respondents, banned all forms of age relaxation. It was contended that this decision, being a policy matter, superseded any previous provisions for age relaxation, and the respondents were bound to implement it. It was further submitted that the petitioner's claim for age relaxation could not be entertained in light of the new policy, and thus, the rejection order dated 23.04.2026 was lawfully passed and deserved to be upheld.

8. We have heard the learned counsel for the parties at considerable length and have meticulously perused the available record with their able assistance. The controversy involved in the instant matter lies within a narrow scope and revolves around the question as to whether, after permitting the petitioner to participate in the entire recruitment process, impliedly accepting his claim for age relaxation, declaring him successful, recommending him for appointment, and issuing a provisional offer of appointment, the respondents could lawfully refuse issuance of the formal appointment order solely on the ground of being over-age, particularly in light of a subsequent change in policy.

9. It is an undisputed fact that the advertisement inviting applications for the post of Assistant (BPS-16) specifically mentioned that age relaxation would be admissible in accordance with the prevailing Government rules and policy. The petitioner, in his application submitted

in 2022, expressly sought this relaxation. At that time, Age Relaxation Rules were in force. Rule 3 of these Rules provides for the general relaxation in the upper age limit. Rule 5 prescribe that in column No. 3 of Rule 3 relating to general candidates, the age relaxation shall be subject to cogent reasons and sound justification of the case. While Rule 6 deals with seeking of age relaxation prior to appointment. Therefore, at the time of the petitioner's application and participation in the recruitment process, there was a clear legal framework and policy in place allowing for age relaxation.

10. The respondents' conduct—permitting the petitioner to sit for the ETEA test, qualify it on merit, appear in the interview, secure recommendation by the Selection Committee, and ultimately receive a provisional offer of appointment—unequivocally indicates an implied acceptance of his entitlement to age relaxation as per the advertised terms and existing rules. At no point during this extended and rigorous process did the respondents raise any objection regarding his age, despite his explicit request for relaxation. This conduct created a legitimate expectation in the petitioner that he would be appointed, subject only to successful completion of the remaining formalities. The doctrine of Legitimate Expectation, now firmly embedded in administrative law jurisprudence protects individuals against arbitrary departures from representations, practices, or conduct adopted by public authorities. In the case of **National Database and Registration Authority (NADRA) v. Jawad Khan (2023 SCMR 1381)**, the Supreme Court held:

6. [...] The doctrine of legitimate expectation connotes that a person may have a reasonable expectation of being treated in a certain way by administrative authorities owing to some uniform practice or an explicit promise made by the concerned authority. In fact, a legitimate expectation ascends in consequence of a promise, assurance, practice or policy made, adopted or announced by or on behalf of government or a public authority. When such a legitimate expectation is obliterated, it affords a locus standi to challenge the administrative action and even, in the absence of a substantive right, a legitimate expectation may allow an individual to seek judicial review of a wrongdoing; and in deciding whether the expectation was legitimate or not, the Court may consider that the decision of the public authority has breached a legitimate expectation and, if it is proved, then the Court may annul the decision and direct the concerned authority/person to live up to the legitimate expectation. This doctrine is basically applied as a tool to watch over the actions of administrative authorities and in essence imposes obligations on all public authorities to act fair and square in all matters encompassing legitimate expectation [Ref: Uzma Manzoor v. Vice-Chancellor, Khushal Khan Khattak University (2022 SCMR 694)]. The doctrine of legitimate expectation is equated with “fairness” and “equity” which is a legitimate attribute of a public functionary. The justification for treating “legitimate expectation” and “promissory estoppel” together as grounds for judicial review is (i) that they both fall under the general head of “fairness”; and (ii) that “legitimate expectation” is akin to an estoppel [Ref: Judicial Review of Public Actions by Justice (Retd.) Fazal Karim, page 1365].

Similarly, in ***Uzma Manzoor v. Vice-Chancellor, Khushal Khan Khattak University (2022 SCMR 694)***, the Supreme Court noted that:

“12. The doctrine of legitimate expectation connotes that a person may have a reasonable expectation of being treated in a certain way by administrative authorities owing to some uniform practice or an explicit promise made by the concerned authority. In fact, a legitimate expectation ascends in consequence of a promise, assurance, practice or policy made, adopted or announced by or on behalf of government or a public authority. When such a legitimate expectation is obliterated, it affords locus standi to challenge the administrative action and even in the absenteeism of a substantive right, a legitimate expectation may allow an individual to seek judicial

review of a wrongdoing and in deciding whether the expectation was legitimate or not, the courts may consider that the decision of public authority has breached a legitimate expectation and if its proved then the court may annul the decision and direct the concerned authority/person to live up to the legitimate expectation. This doctrine is basically applied as a tool to watch over the actions of administrative authorities and in essence imposes obligations on all public authorities to act fair and square in all matters encompassing legitimate expectation. This Court expatiated the doctrine of legitimate expectation in the "Judges Pension case" reported in PLD 2013 SC 829 with the observation that the rule of legitimate expectation is not a part of any codified law, rather the doctrine has been coined and designed by the Courts primarily for the exercise of their power of judicial review of the administrative actions. As per Halsbury's Laws of England, Volume 1(1), 4th Edition, paragraph 81, at pages 151-152, it is prescribed that "A person may have a legitimate expectation of being treated in certain way by an administrative authority even though he has no legal right in private law to receive such treatment. The expectation may arise from a representation or promise made by the authority including an implied representation or from consistent past practice." In the case of R. v. Secretary of State of Transport Exporte Greater London Council (1985) 3 ALL.ER 300, it is propounded that "Legitimate, or reasonable, expectation may arise from an express promise given on behalf of a public authority or from the existence of a regular practice which the claimant can reasonably expect to continue. The expectation may be based on some statement or undertaking by or on behalf of the public authority which has the duty of taking decision." Whereas in the judgment reported as Union of India v. Hindustan Development Corporation (1993) 3 SCC 499, it was held that "The legitimacy of an expectation can be inferred only if it is founded on the sanction of law or custom or established procedure followed in regular and natural sequence. It is also distinguishable from a genuine expectation. Such expectation should be justifiably legitimate and protectable. Every such legitimate expectation does not by itself fructify into a right and therefore it does not amount to a right in the conventional sense.'"

11. This Court has consistently held that once a candidate is allowed to participate in the entire selection process without any objection to his eligibility, the employer cannot, at a later stage, raise an objection regarding the same eligibility criteria that were either known or ought to

have been known. In this regard, reference may be made to the case of **Rukhsar Ali v. Government of N.W.F.P** reported as **(2003 PLC 1453)**, where it was observed that:

“12. [...] The respondents, therefore, not only by the written words but by the conduct of their officials made to the petitioners clear that they would be appointed on regular basis, therefore, unequivocal promise which is intended to create legal relations or effect a legal relationship to arise in future, knowing or intending that it would be acted upon by the petitioners to whom promise was made and that in fact it would be so acted upon by the Appointing Authorities, the promise thus made was binding on the party making it and it would not be entitled to go back upon it, if it would be inequitable to allow it to do so without having regard to the exercise which had taken place between the parties and this would be so irrespective of whether there is any pre-existing relationship between the parties or not. The doctrine of promissory estoppel need not be inhibited by the same limitation as estoppel in the strict sense of the terms. It is an equitable principle evolved by the Courts for doing justice and there is no reason why it should be given only a limited application by way of defence. This principle was adapted in Pakistan through *Ministry of Finance Economic Affairs and another v. Facto Belarus Tractors Limited* (PLD 2002 SC 208), Pakistan through *Secretary, Ministry of Commerce and 2 others v. Salahuddin and 3 others* (PLD 1991 SC 546) And *Messrs Motilal Padampat Sugar Mills Co. Ltd. v. The State of Uttar Pradesh and others* (AIR 1979 SC 621).”

12. The respondents’ reliance on the Provincial Cabinet Decision dated 15.01.2025, communicated vide No. SO (Police-I)/HD/7-17/Pol:Act/2024 dated 20.01.2025, banning age relaxation, requires careful scrutiny. It is a fundamental principle of law that statutory rules, notifications, or policy decisions generally operate prospectively unless expressly stated otherwise or if their retrospective application is necessitated by clear legislative intent and is for public good, without adversely affecting vested rights. Reference may be made to **Commissioner Inland Revenue and others v. Mekotex (Pvt.) Limited and**

others (PLD 2024 SC 1168). In the instant case, the petitioner applied for the post in 2022, long before this Cabinet Decision. At that time, the age relaxation policy was in full effect. His rights and legitimate expectations crystalized in accordance with the rules and policy prevailing at the time of the advertisement and the submission of his application. Applying a subsequent policy decision retrospectively to deny a right that had already accrued or was in the process of accrual would be unjust and unlawful. The Superior Courts, in numerous pronouncements, has deprecated the practice of changing rules or policies mid-way through a selection process to the detriment of candidates. In **Fatima and others v. Government of Pakistan (2018 PLC 292)**, the worthy High Court of Balochistan held:

“18. However, prior to aforesaid application, the respondents have filed another miscellaneous application relating to ban imposed by the Federal Government on fresh recruitments, which brought us to ponder; 'whether ban could be applied retrospectively or prospectively'. Thus, it clearly manifests that the post of Manager (Legal) has never been withdrawn at any stage. It is not difficult to find the answer. The ban imposed subsequent to the selection could not take away the rights of the petitioner which has already accrued to her and was also finalized. The ban, if any, could at the best be applied retrospectively and that being so the case of the petitioner is safe but the petitioner is now being denied such appointment for no valid reason and process of selection which has been completed in an ordinary manner cannot be upset on this pretext, in an arbitrary manner without disclosing a single instance of foul play. The reference is made to the case of Dr. Marvi Shah v. Province of Sindh (2009 PLC (C.S.) 182.”

13. The argument by the respondents that mere participation or provisional recommendation does not confer a vested right of appointment is only partially correct. While it is true that no candidate has an absolute right to be appointed merely by participating in a selection process,

however, when once a candidate successfully completes all stages of the selection process as per the advertised terms and prevailing rules, and is duly recommended by the competent authority, a vested right to be considered for appointment, with due application of available relaxations, certainly accrues. To deny appointment at the very last stage on a ground that was either explicitly catered for by policy (age relaxation) or was discoverable and ought to have been addressed earlier, amounts to an arbitrary exercise of power. The respondents cannot be permitted to approbate and reprobate by first allowing the petitioner to invest his time and effort in the recruitment process based on an assurance of age relaxation and then suddenly retracting it based on a subsequent policy decision. Similarly, the petitioner cannot also be made to suffer for an omission or oversight on the part of public functionaries. The well-established maxim that *“an act or omission of a public authority should prejudice none”* squarely applies to the facts of the present case. Reliance is placed on **Muhammad Yasin v. Secretary, Government of Punjab** (2008 PLC(CS) 303 Supreme Court); **Overseas Pakistanis Foundation and others v. Sqn. Ldr. (Retd.) Syed Mukhtar Ali Shah** (2007 SCMR 569) & **Province of The Punjab through Collector District Khushab, Jauharabad v. Haji Yaqoob Khan** (2007 SCMR 554).

14. It is equally settled that where an administrative order has taken effect and valuable rights have accrued therefrom, the authority's power to withdraw or rescind such order becomes significantly restricted. The doctrine of *locus poenitentiae* cannot be invoked indefinitely to undo completed administrative actions, particularly where no fraud, concealment, misrepresentation, or misconduct is

attributable to the beneficiary. Reference may be made to *Shahbaz v. Crown* (PLD 1956 F.C. 46); *Mahhooh Rabani v. Government of Pakistan* (PLD 1963 Lah. 53); *Adnan Afzal v. Capt Sher Afzal* (PLD 1969 SC 187); and *Pakistan v. Muhammad Himayatullah* (PLD 1969 SC 407).

15. Thus, the impugned rejection letter/order dated 23.04.2026, which formally denied the age relaxation and consequently the appointment, is thus found to be illegal, unlawful, without lawful authority, and against the spirit of the rules and settled principles of law regarding vested rights and legitimate expectation. The Provincial Cabinet Decision of 15.01.2025, banning age relaxation, being prospective in nature, cannot be applied to the petitioner's case, which commenced under the regime of the 2008 Rules and the terms of the advertisement.

16. For the reasons elaborated above, we find the instant petition to be meritorious. The refusal of the respondents to grant age relaxation to the petitioner and to issue his formal appointment order, particularly after his successful completion of the entire recruitment process and recommendation for appointment, is legally unsustainable. Accordingly, the petition is hereby ALLOWED. The impugned rejection letter/order dated 23.04.2026, being illegal, unlawful, without lawful authority, and contrary to the relevant rules and principles of natural justice, is hereby QUASHED.

17. The respondents are directed to grant age relaxation to the petitioner, Muhammad Umair, in accordance with the provisions of *The Khyber Pakhtunkhwa Initial Appointment to Civil Posts (Relaxation of Upper Age Limit) Rules, 2008*,

and the terms of the advertisement under which he applied. Consequently, the respondents are further directed to issue a formal appointment order in favour of the petitioner for the post of Assistant (BPS-16) forthwith, preferably within a period of thirty (30) days from the date of this judgment, with all consequential benefits. There shall be no order as to costs.

Announced.

04.06.2026

(Shahid Ali *JSS*)

**SENIOR PUISNE
JUDGE**

JUDGE

(D.B) Honorable Mr. Justice Ijaz Anwar &
Honorable Mr. Justice Inam Ullah Khan